

The Commercial Courts (Statistical Data) Rules, 2018

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The Commercial Courts (Statistical Data) Rules, 2018

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The Commercial Courts (Statistical Data) Rules, 2018

Rule THE-COMMERCIAL-COURTS-STATISTICAL-DATA-RULES-2018 of 2018

Published on 3 July 2018

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The Commercial Courts (Statistical Data) Rules, 2018

Published vide Notification No. G.S.R. 607(E), dated 3.7.2018

G.S.R. 607(E). - In exercise of the powers conferred by sub-section (1) of section 21A of the Commercial Courts Act, 2015 and in pursuance of section 17 of the said Act, the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Commercial Courts (Statistical Data) Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules unless the context otherwise requires,-

(a)

"Act" means the Commercial Courts Act, 2015 (4 of 2016

);

(b)

"Schedule" means the Schedule appended to these rules.

(2)

The words and expressions used and not defined in these rules but defined in the Act- shall have the same meanings as respectively assigned to them in that Act.

3.

Collection and disclosure of data by Commercial Courts, Commercial Appellate Courts, Commercial Divisions and Commercial Appellate Divisions of High Courts.

- The statistical data, as required by section 17 of the Act, regarding the number of suits, applications, appeals or writ petitions filed before the Commercial Courts, Commercial Appellate Courts, Commercial Division or Commercial Appellate Division, as the case may be, the pendency of such cases, the status of each case, and the number of cases disposed off, shall be maintained, updated and published by the tenth day of every month in the form specified in Schedule appended to these rules, by the concerned High Courts on their website.

Schedule

Format for Statistical data

(See Rule 3)

S.No

Name of the Court

No. of cases pending (on the 1st day of month of ____)

No. of new cases instituted (during the month as per column 3)

Total cases pending in the court (on the last day of the month as per column 3)

No. of cases disposed (during the month as per column 3)

Average no. of days taken to decide the case

(1)

(2)

(3)

(4)

(5)

(6)

(7)

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